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Case Number: 25PSCV03488 Hearing Date: September 21, 2026 Dept: G

Defendant/Cross-Defendant Kevin

Jagiello's Motion to Set Aside Default and for Leave to Defend Cross-Action

Respondent: Defendant/Cross-Complainant

Green Coast Building & Development, Inc.

TENTATIVE RULING

Defendant/Cross-Defendant

Kevin Jagiello's Motion to Set Aside Default and for Leave to Defend

Cross-Action is GRANTED.

Defendant

and Cross-Defendant Jagiello is ordered to FILE SEPARATELY THE PROPOSED ANSWER, attached as Exhibit 1 to the moving paper, in TEN (10) DAYS.

BACKGROUND

This

is an action for breach of contract and fraud.

Defendant/cross-defendant Kevin Jagiello (Jagiello) allegedly represented himself as an officer of defendant/cross-complainant Green Coast Building & Development, Inc. (Green Coast). On

March 27, 2022, Jagiello allegedly entered into a written contract on Green Coast's behalf for goods and services from plaintiff/cross-defendant SRS Distribution, Inc. (SRS) and allegedly served as a personal guarantor on the contract. On August 20, 2025, Green

Coast and Jagiello allegedly defaulted on the contract.

On

September 29, 2025, SRS filed the Complaint, alleging a sole cause of action for breach of contract (and of personal guaranty).

On

December 15, 2025, Green Coast filed the Cross-Complaint, alleging causes of action for (1) negligence, (2) declaratory relief, (3) fraud, (4) constructive fraud, (5) breach of fiduciary duty, and (6) indemnity.

On February

19, 2026, the court entered default against Jagielo (on the Cross-Complaint).

On

August 18, 2026, Jagielo filed this motion to set aside entry of default. On September

8, 2026, Defendant/Cross-Complainant

Green Coast Building & Development, Inc. filed an opposition. On September 14, 2026, Jagielo filed a reply.

The

motion is set for hearing on September 21, 2026.

ANALYSIS

Jagielo

moves to set aside the entry of default based on a party mistake, or in the alternative, attorney mistake. For the following reasons, the motion is GRANTED.

Legal

Standard

Whenever

an application for relief from default is made no more than six months after entry of default, is in proper form, and is accompanied by the moving party's sworn affidavit attesting to their mistake, inadvertence, surprise, or excusable neglect, the court may vacate any (1) resulting default entered by the clerk against the moving party or (2) resulting default judgment or dismissal entered against the moving party, unless the court finds that the default or dismissal was not in fact caused by the moving party's mistake, inadvertence, surprise, or excusable neglect.

(See Code Civ. Proc., § 473, subd. (b).) When the motion is based on a party's mistake, the "six-month period runs from entry of default, not entry of judgment." (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42.)

"The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief [under Section 473] made after that period has elapsed." (Ibid., emphasis added.)

If

based on the mistake, inadvertence, surprise, or neglect of the party's attorney, then the court must set aside the entry of default and vacate any resulting default judgment against that party.

(Code Civ. Proc., § 473, subd. (b).)

"[R]elief may be denied if the court finds the default was not in fact the attorney's fault, for example when the attorney is simply covering up for the client's neglect." (Bailey v.

Citibank, Nat. Assn. (2021) 66 Cal.App.5th 335, 349.) The provision based on attorney mistake "does not afford relief to a client who, after inexcusably allowing his default to be entered, hires an attorney whose neglect results in a default judgment"; in other words, the entry of default must be the attorney's fault. (Cisneros v. Vuelve (1995) 37 Cal.App.4th 906, 908.) To obtain relief,

the attorney must include a sworn affidavit attesting to their mistake, and the court must direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel and parties. (See ibid.) In contrast to the

discretionary provision based on a party's mistake, the six-month period for a motion to set aside entry of default based on an attorney's mistake runs from the entry of judgment, not the entry of default. (See Jimenez v. Chavez (2023) 97 Cal.App.5th 50, 60.)

Courts

liberally grant motions to vacate default judgments when relief is promptly sought and the opposing party is not prejudiced as the law strongly favors resolution on the merits. (See Kramer

v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 28.) Courts only require "slight evidence" to support vacating a default and resolve all doubts in favor of the party seeking relief. (Ibid.) However, "[t]he only occasion for the application of [S]ection 473 is where a party is unexpectedly placed in a situation to [their own] injury without fault or negligence of [their] own and against

which ordinary prudence could not have guarded.” (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206; see Hodge Sheet Metal Products v. Palm Springs Riviera Hotel (1961) 189 Cal.App.2d 653, 657, defining “excusable neglect” within the meaning of Section 473 as “neglect which might have been the act of a reasonably prudent person under the same circumstances.”)

Discussion

As

a preliminary matter, the court must determine whether this motion is timely. As stated above, a party must

seek relief from default under Section 473 within six months. (See Code Civ. Proc., § 473, subd. (b).) For discretionary relief based on party

mistake, the time runs from the entry of default. (See Manson, Iver & York, supra, 176 Cal.App.4th at 42.) For mandatory

relief based on attorney mistake, the time runs from the entry of judgment. (See Jimenez, supra, 97 Cal.App.5th at 60.)

Here,

the court entered default against Jagielo on February 19, 2026 and did not issue a judgment. Jagielo moved for

relief on August 18, 2026, within six months of the entry of default. Thus, this motion is timely under both the discretionary and the mandatory provisions of Section 473.

Jagielo

argues that the entry of default was due to his excusable neglect. The court disagrees.

“[A]

summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge . . . and by thereafter mailing a copy of the summons and of the complaint . . . to the person to be served at the place where a copy of the summons and complaint were left.”

(Code Civ. Proc., § 415.20, subd. (b).)

“The return of a [registered process server] . . . upon process . . .

establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.” (Evid.

Code, § 647.)

The

proof of service reflects that a process server served Jagielo with the

Cross-Complaint by substituted service on December 23, 2025. (See 12/29/2025 POS, ¶¶ 2–5.) As stated above, process server's proof of service creates a presumption that he

completed service according to the facts stated in the return. (See Evid. Code, § 647.) Jagielo's declaration states that he "was not

aware that [he] had been served with the summons or Cross-Complaint by Green

Coast until on or about March 19, 2026."

(Mot., Jagielo Decl., ¶ 3.)

However, Jagielo does not attest to any facts for the court to conclude

that the failure to timely respond to the Cross-Complaint was the result of his

own excusable neglect. Thus, the court finds

that Jagielo fails to meet his burden for discretionary relief under Section

473, subdivision (b).

Alternatively,

Jagiello argues that the entry of default was due to his counsel's neglect. The court agrees.

As

stated above, to obtain relief under the mandatory provision of Section 473,

subdivision (b), the attorney must include a sworn affidavit attesting to their

mistake. (See *Cisneros*, supra,

37 Cal.App.4th at 908.)

Here,

Jagiello's counsel states that they were retained on February 17, 2026, before

the court entered default against Jagielo.

(See Mot., Felton Decl., ¶ 6.)

However, counsel did not check the docket in this case, so counsel did

not discover that Green Coast served a Cross-Complaint on Jagielo or that Green

Coast had recently sought default against Jagielo. (See Mot., Felton Decl., ¶ 6.) In other words, counsel could have avoided

the entry of default had they been attentive to the docket, which the court finds

is a sufficient basis to grant the motion under Section 473, subdivision

(b). (See *Graham v. Beers*

(1994) 30 Cal. App. 4th 1656, 1660, stating, "No reason need be given for the

existence of [mistake, inadvertence, surprise, or neglect]. Attestation that one of these reasons existed

is sufficient to obtain relief. . . .")

Thus, the court finds that Jagielo meets his burden for discretionary

relief under Section 473, subdivision (b).

Therefore,

the motion to set aside entry of default is GRANTED. Defendant and Cross-Defendant Jagielo is ordered to FILE SEPARATELY THE PROPOSED ANSWER, attached as Exhibit 1 to the moving paper, in TEN (10) DAYS.

CONCLUSION

For

these reasons, the motion to set aside default and for leave to defend cross-action is GRANTED.

Defendant

Jagielo is ordered to FILE SEPARATELY THE PROPOSED ANSWER, attached as Exhibit 1 to the moving paper, in TEN (10) DAYS.